

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Filed: _____

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Matthew De La Cruz and Daniel Casanova,

Index No.:

Plaintiffs,

Plaintiff designates
Bronx County as the
place of trial

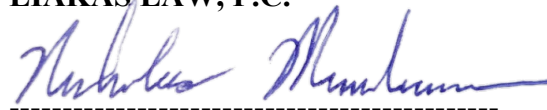
- against-

The City Of New York, Lauren Moriarty, Shield No. 14377,
and John Does #1-6,**SUMMONS**

Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, to, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
December 2, 2021The nature of this action is for violation of Plaintiff's Civil and Constitutional Rights.
The relief sought is monetary damages.**LIAKAS LAW, P.C.**Type text here
BY: Nicholas Mindicino, ESQ.
Attorney for Plaintiff
65 Broadway, 13th Floor
New York, N.Y. 10006
(212) 937-7765**If you fail to respond, judgment will be entered against you by default, with interest from date of incident.**Defendants:**City of New York**
Office of the Corporation Counsel
100 Church Street
New York, New York 10007**Lauren Moriarty, Shield No. 14377**
NYPD 42nd Precinct
830 Washington Ave
Bronx, NY 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Matthew De La Cruz and Daniel Casanova,

Plaintiff,

VERIFIED COMPLAINT

- against-

The City Of New York, Lauren Moriarty, Shield No. 14377,
and John Does #1-6,Defendants.
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Plaintiffs, by their attorneys, LIAKAS LAW, P.C., as and for this Complaint, alleges as follows:

Preliminary Statement

1. This is a civil rights action in which plaintiffs seek relief through the laws of the United States and the State of New York for the violation of their right to be Free of Unreasonable Search and Seizure under the United States and the New York State Constitutions.
2. The claim arises from an October 13, 2020 incident in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiffs to false arrest.
3. Plaintiffs seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper

JURISDICTION & VENUE

4. Within 90 days of the incidents alleged in this complaint, Plaintiffs served upon Defendant, City of New York, a Notice of Claim setting forth the name and post office address of Plaintiffs, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed.

5. More than 30 days have elapsed since Plaintiffs' Notice of Claim was served on Defendant.
6. Venue is proper in the Supreme Court of the State of New York, Bronx County, because the acts in question occurred in the State of New York, Bronx County, and the City of New York is subject to personal jurisdiction in the Supreme Court of the State of New York, Bronx County.

PARTIES

7. Plaintiff Matthew De La Cruz is a resident of the State of New York, Bronx County.
8. Plaintiff Daniel Casanova is a resident of the State of New York, Bronx County.
9. The City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the New York Police Department (or "NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all relevant times, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
10. Lauren Moriarty, Shield No. 14377 and John Does #1-6 were at all relevant times police officers of the NYPD, and as such were acting in the capacity of agent, servant and employee of the City of New York. On information and belief, Lauren Moriarty, Shield and John Does #1-6 were involved in the illegal arrest and prosecution of plaintiff and/or failed to intervene in the actions of their fellow officers. Defendants Lauren Moriarty, and John Does #1-6 are sued in their individual capacities.

11. John Does #1-6 are individual police officers involved in the arrest and prosecution of Plaintiff whose names are not presently in Plaintiff's possession.

FACTUAL HISTORY

12. On October 13, 2020 at approximately 9:00 pm Plaintiffs were lawfully present near the intersection of Bryant Avenue and 165th Street in Bronx New York.
13. Defendant NYPD Officers Lauren Moriarty, Shield No. 14377 and John Does #1-6 approached Plaintiffs near the intersection of Bryant Avenue and 165th Street in Bronx New York.
14. Defendant NYPD Officers Lauren Moriarty, Shield No. 14377 and John Does #1-6 arrested Plaintiffs.
15. Plaintiffs had not committed any crime, nor was there reasonable basis or probable cause to believe they had committed any crime.
16. Plaintiffs were brought to an NYPD Precinct.
17. Plaintiffs were brought to Bronx Central Booking to await arraignment.
18. Eventually Plaintiffs were released without any charges being filed against them after the Bronx County District Attorney Declined to prosecute Plaintiffs.
19. At all times herein, the defendants lacked probable cause to believe Plaintiff had committed any crime.

DAMAGES

20. As a direct and proximate result of the acts of defendants, Plaintiffs suffered the following injuries and damages:
 - a. Violation of their Federal and New York State Constitutional right to Due Process of Law;

- b. Violation of their Federal and New York State Constitutional right to be free from unreasonable searches and seizures;
- c. Loss of Liberty;
- d. Emotional distress, including fear, embarrassment, depression, anger and anxiety.

FIRST CAUSE OF ACTION

(False Arrest Under New York State Law)

- 21. The above paragraphs are here incorporated by reference.
- 22. Defendants subjected plaintiffs to false arrest, false imprisonment, and deprivation of liberty without probable cause.
- 23. Defendants intended to confine plaintiffs and in fact confined them.
- 24. Plaintiffs were conscious of the confinement and did not consent to it.
- 25. The confinement was not privileged.
- 26. Plaintiffs were damaged by this wrongful imprisonment.

SECOND CAUSE OF ACTION

(Respondeat Superior)

- 27. The above paragraphs are here incorporated by reference.
- 28. The defendants' tortious acts were undertaken within the scope of their employment by Defendant City of New York and in furtherance of the Defendant City of New York's interest.
- 29. As a result of defendants' tortious conduct in the course of their employment and in furtherance of the business of Defendant City of New York, Plaintiff was damaged.
- 30. The City of New York is liable for the tortious acts of its employees by reason of respondeat superior.

THIRD CAUSE OF ACTION

(42 U.S.C. §1983)

31. The above paragraphs are here incorporated by reference.
32. Defendants have deprived Plaintiffs of their civil, constitutional and statutory rights under color of law and have conspired to deprive them of such rights and are liable to Plaintiffs under 42 USC § 1983.
33. Defendants' conduct deprived Plaintiffs of their right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.
34. Defendants' conduct deprived Plaintiff of their right to due process of law, pursuant to the Fourteenth Amendment to the United States Constitution.
35. Defendants falsely arrested plaintiff without probable cause to believe he had committed a crime, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.
36. Defendants were deliberately indifferent to the medical needs of Plaintiff Matthew De La Cruz.
37. Plaintiff has been damaged as a result of defendants' wrongful acts.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants as follows:

- (A) compensatory damages in an amount to be determined at trial for each of Plaintiff's Causes of Action;
- (B) punitive damages in an amount to be determined at trial;
- (C) an order awarding Plaintiff reasonable attorneys' fees and costs;
- (D) such other further relief as the Court may deem just and proper.

Dated: New York, New York
December 2, 2021

Yours, etc.
LIAKAS LAW, P.C.

By: 

Nicholas Mindicino, ESQ.
Attorneys for Plaintiff
65 Broadway, 13th Floor
New York, New York 10006
(212) 937-7765

STATE OF NEW YORK)
) ss
COUNTY OF NEW YORK)

I, the undersigned, an attorney admitted to practice in the courts of New York State, state under penalty of perjury that I am one of the attorneys for Plaintiff in the within action; I have read the foregoing SUMMONS AND VERIFIED COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not by my client, is that my client are not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigations conducted by my office.

Dated: New York, New York
December 2, 2021



NICHOLAS MINDICINO, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Matthew De La Cruz and Daniel Casanova,

Plaintiff,

- against-

The City Of New York, Lauren Moriarty, Shield No. 14377,
and John Does #1-6

Defendants

LIAKAS LAW, P.C.
Attorneys for Plaintiff(s)
65 Broadway - 13th Floor
New York, New York 10006
212-937-7765

SUMMONS and VERIFIED COMPLAINT

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

Nicholas Mindicino, the undersigned, an attorney admitted to practice in the Courts of New York State, affirms the following:

I further certify that my signature below acts as a "certification" for the documents attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR).

Dated: New York, New York
December 2, 2021



Nicholas Mindicino, ESQ.

PLEASE TAKE NOTICE

- () that the within is a (certified) true copy of a Notice of _____ entered in the Office of the clerk of the within Entry named Court on _____
- () that an Order of which the within is a true copy will be presented for Notice of settlement to the Hon. _____ one of the Judges of the Settlement within named Court, on _____, at _____
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